

COMMITTEE ON TRANSPORTATION & INFRASTRUCTURE
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1552
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-101, Arizona Revised Statutes, is amended to
3 read:

4 28-101. Definitions

5 In this title, unless the context otherwise requires:

6 1. "Alcohol" means any substance containing any form of alcohol,
7 including ethanol, methanol, propynol and isopropynol.

8 2. "Alcohol concentration" if expressed as a percentage means
9 either:

10 (a) The number of grams of alcohol per one hundred milliliters of
11 blood.

12 (b) The number of grams of alcohol per two hundred ten liters of
13 breath.

14 3. "All-terrain vehicle" means either of the following:

15 (a) A motor vehicle that satisfies all of the following:

16 (i) Is designed primarily for recreational nonhighway all-terrain
17 travel.

18 (ii) Is fifty or fewer inches in width.

19 (iii) Has an unladen weight of one thousand two hundred pounds or
20 less.

21 (iv) Travels on three or more nonhighway tires.

22 (v) Is operated on a public highway.

23 (b) A recreational off-highway vehicle that satisfies all of the
24 following:

25 (i) Is designed primarily for recreational nonhighway all-terrain
26 travel.

27 (ii) Is eighty or fewer inches in width.

1 (iii) Has an unladen weight of two thousand five hundred pounds or
2 less.

3 (iv) Travels on four or more nonhighway tires.

4 (v) Has a steering wheel for steering control.

5 (vi) Has a rollover protective structure.

6 (vii) Has an occupant retention system.

7 4. "APPLY[] AND []APPLICATION" MEANS THE PROCESS IN WHICH A
8 PERSON PROVIDES REQUIRED INFORMATION IN A MANNER PRESCRIBED BY THE
9 DEPARTMENT FOR SERVICES RENDERED BY THE DEPARTMENT.

10 ~~4.~~ 5. "Authorized emergency vehicle" means any of the following:

11 (a) A fire department vehicle.

12 (b) A police vehicle.

13 (c) An ambulance or emergency vehicle of a municipal department or
14 public service corporation that is designated or authorized by the
15 department or a local authority.

16 (d) Any other ambulance, fire truck or rescue vehicle that is
17 authorized by the department in its sole discretion and that meets
18 liability insurance requirements prescribed by the department.

19 ~~5.~~ 6. "Autocycle" means a three-wheeled motorcycle on which the
20 driver and passengers ride in a fully or partially enclosed seating area
21 that is equipped with a roll cage, safety belts for each occupant and
22 antilock brakes and that is designed to be controlled with a steering
23 wheel and pedals.

24 ~~6.~~ 7. "Automated driving system" means the hardware and software
25 that are collectively capable of performing the entire dynamic driving
26 task on a sustained basis, regardless of whether it is limited to a
27 specific operational design domain.

28 ~~7.~~ 8. "Automotive recycler" means a person that is engaged in the
29 business of buying or acquiring a motor vehicle solely for the purpose of
30 dismantling, selling or otherwise disposing of the parts or accessories
31 and that removes parts for resale from six or more vehicles in a calendar
32 year.

33 ~~8.~~ 9. "Autonomous vehicle" means a motor vehicle that is equipped
34 with an automated driving system.

35 ~~9.~~ 10. "Aviation fuel" means all flammable liquids composed of a
36 mixture of selected hydrocarbons expressly manufactured and blended for
37 the purpose of effectively and efficiently operating an internal
38 combustion engine for use in an aircraft but does not include fuel for jet
39 or turbine powered aircraft.

40 ~~10.~~ 11. "Bicycle" means a device, including a racing wheelchair,
41 that is propelled by human power and on which a person may ride and that
42 has either:

43 (a) Two tandem wheels, either of which is more than sixteen inches
44 in diameter.

45 (b) Three wheels in contact with the ground, any of which is more
46 than sixteen inches in diameter.

47 ~~11.~~ 12. "Board" means the transportation board.

1 ~~12.~~ 13. "Bus" means a motor vehicle designed for carrying sixteen
2 or more passengers, including the driver.

3 ~~13.~~ 14. "Business district" means the territory contiguous to and
4 including a highway if there are buildings in use for business or
5 industrial purposes within any six hundred feet along the highway,
6 including hotels, banks or office buildings, railroad stations and public
7 buildings that occupy at least three hundred feet of frontage on one side
8 or three hundred feet collectively on both sides of the highway.

9 ~~14.~~ 15. "Certificate of ownership" means a paper or an electronic
10 record that is issued in another state or a foreign jurisdiction and that
11 indicates ownership of a vehicle.

12 ~~15.~~ 16. "Certificate of title" means a paper document or an
13 electronic record that is issued by the department and that indicates
14 ownership of a vehicle.

15 ~~16.~~ 17. "Combination of vehicles" means a truck or truck tractor
16 and semitrailer and any trailer that it tows but does not include a
17 forklift designed for the purpose of loading or unloading the truck,
18 trailer or semitrailer.

19 ~~17.~~ 18. "Controlled substance" means a substance so classified
20 under section 102(6) of the controlled substances act (21 United States
21 Code section 802(6)) and includes all substances listed in schedules I
22 through V of 21 Code of Federal Regulations part 1308.

23 ~~18.~~ 19. "Conviction" means:

24 (a) An unvacated adjudication of guilt or a determination that a
25 person violated or failed to comply with the law in a court of original
26 jurisdiction or by an authorized administrative tribunal.

27 (b) An unvacated forfeiture of bail or collateral deposited to
28 secure the person's appearance in court.

29 (c) A plea of guilty or no contest accepted by the court.

30 (d) The payment of a fine or court costs.

31 ~~19.~~ 20. "County highway" means a public road that is constructed
32 and maintained by a county.

33 ~~20.~~ 21. "Dealer" means a person who is engaged in the business of
34 buying, selling or exchanging motor vehicles, trailers or semitrailers and
35 who has an established place of business and has paid fees pursuant to
36 section 28-4302.

37 ~~21.~~ 22. "Department" means the department of transportation acting
38 directly or through its duly authorized officers and agents.

39 ~~22.~~ 23. "Digital network or software application" has the same
40 meaning prescribed in section 28-9551.

41 ~~23.~~ 24. "Director" means the director of the department of
42 transportation.

43 ~~24.~~ 25. "Drive" means to operate or be in actual physical control
44 of a motor vehicle.

45 ~~25.~~ 26. "Driver" means a person who drives or is in actual
46 physical control of a vehicle.

1 ~~26.~~ 27. "Driver license" means a license that is issued by a state
2 to an individual and that authorizes the individual to drive a motor
3 vehicle.

4 ~~27.~~ 28. "Dynamic driving task":

5 (a) Means all of the real-time operational and tactical functions
6 required to operate a vehicle in on-road traffic.

7 (b) Includes:

8 (i) Lateral vehicle motion control by steering.

9 (ii) Longitudinal motion control by acceleration and deceleration.

10 (iii) Monitoring the driving environment by object and event
11 detection, recognition, classification and response preparation.

12 (iv) Object and event response execution.

13 (v) Maneuver planning.

14 (vi) Enhancing conspicuity by lighting, signaling and gesturing.

15 (c) Does not include strategic functions such as trip scheduling
16 and selecting destinations and waypoints.

17 ~~28.~~ 29. "Electric bicycle" means a bicycle or tricycle that is
18 equipped with fully operable pedals and an electric motor of less than
19 seven hundred fifty watts and that meets the requirements of one of the
20 following classes:

21 (a) "Class 1 electric bicycle" means a bicycle or tricycle that is
22 equipped with an electric motor that provides assistance only when the
23 rider is pedaling and that ceases to provide assistance when the bicycle
24 or tricycle reaches the speed of twenty miles per hour.

25 (b) "Class 2 electric bicycle" means a bicycle or tricycle that is
26 equipped with an electric motor that may be used exclusively to propel the
27 bicycle or tricycle and that is not capable of providing assistance when
28 the bicycle or tricycle reaches the speed of twenty miles per hour.

29 (c) "Class 3 electric bicycle" means a bicycle or tricycle that is
30 equipped with an electric motor that provides assistance only when the
31 rider is pedaling and that ceases to provide assistance when the bicycle
32 or tricycle reaches the speed of twenty-eight miles per hour.

33 ~~29.~~ 30. "Electric miniature scooter" means a device that:

34 (a) Weighs less than thirty pounds.

35 (b) Has two or three wheels.

36 (c) Has handlebars.

37 (d) Has a floorboard on which a person may stand while riding.

38 (e) Is powered by an electric motor or human power, or both.

39 (f) Has a maximum speed that does not exceed ten miles per hour,
40 with or without human propulsion, on a paved level surface.

41 ~~30.~~ 31. "Electric personal assistive mobility device" means a
42 self-balancing device with one wheel or two nontandem wheels and an
43 electric propulsion system that limits the maximum speed of the device to
44 fifteen miles per hour or less and that is designed to transport only one
45 person.

46 ~~31.~~ 32. "Electric standup scooter":

47 (a) Means a device that:

- 1 (i) Weighs less than seventy-five pounds.
- 2 (ii) Has two or three wheels.
- 3 (iii) Has handlebars.
- 4 (iv) Has a floorboard on which a person may stand while riding.
- 5 (v) Is powered by an electric motor or human power, or both.
- 6 (vi) Has a maximum speed that does not exceed twenty miles per
- 7 hour, with or without human propulsion, on a paved level surface.
- 8 (b) Does not include an electric miniature scooter.
- 9 ~~32.~~ 33. "Evidence" includes both of the following:
- 10 (a) A display on a wireless communication device of a
- 11 department-generated driver license, nonoperating identification license,
- 12 vehicle registration card or other official record of the department that
- 13 is presented to a law enforcement officer or in a court or an
- 14 administrative proceeding.
- 15 (b) An electronic or digital license plate authorized pursuant to
- 16 section 28-364.
- 17 ~~33.~~ 34. "Farm" means any lands primarily used for agriculture
- 18 production.
- 19 ~~34.~~ 35. "Farm tractor" means a motor vehicle designed and used
- 20 primarily as a farm implement for drawing implements of husbandry.
- 21 ~~35.~~ 36. "Foreign vehicle" means a motor vehicle, trailer or
- 22 semitrailer that is brought into this state other than in the ordinary
- 23 course of business by or through a manufacturer or dealer and that has not
- 24 been registered in this state.
- 25 ~~36.~~ 37. "Fully autonomous vehicle" means an autonomous vehicle
- 26 that is equipped with an automated driving system designed to function as
- 27 a level four or five system under SAE J3016 and that may be designed to
- 28 function either:
- 29 (a) Solely by use of the automated driving system.
- 30 (b) By a human driver when the automated driving system is not
- 31 engaged.
- 32 ~~37.~~ 38. "Golf cart" means a motor vehicle that has not less than
- 33 three wheels in contact with the ground, that has an unladen weight of
- 34 less than one thousand eight hundred pounds, that is designed to be and is
- 35 operated at not more than twenty-five miles per hour and that is designed
- 36 to carry not more than four persons including the driver.
- 37 ~~38.~~ 39. "Gross combined weight rating" means the sum of the gross
- 38 vehicle weight rating of a motor vehicle and the trailer or semitrailer
- 39 the motor vehicle tows.
- 40 ~~39.~~ 40. "Gross vehicle weight rating" means the weight that is
- 41 assigned by the motor vehicle manufacturer to a motor vehicle and that
- 42 represents the maximum recommended total weight, including the vehicle and
- 43 the load for the vehicle.
- 44 ~~40.~~ 41. "Hazardous material" means a material, and its mixtures or
- 45 solutions, that the United States department of transportation determines
- 46 under 49 Code of Federal Regulations is, or any quantity of a material
- 47 listed as a select agent or toxin under 42 Code of Federal Regulations

1 part 73 that is, capable of posing an unreasonable risk to health, safety
2 and property if transported in commerce and that is required to be
3 placarded or marked as required by the department's safety rules
4 prescribed pursuant to chapter 14 of this title.

5 ~~41.~~ 42. "Human driver" means a natural person in the vehicle who
6 performs in real time all or part of the dynamic driving task or who
7 achieves a minimal risk condition for the vehicle.

8 ~~42.~~ 43. "Implement of husbandry" means a vehicle that is designed
9 primarily for agricultural purposes and that is used exclusively in the
10 conduct of agricultural operations, including an implement or vehicle that
11 uses an automated driving system or that is autonomous or that is
12 self-propelled or otherwise, whether operated manually, equipped with an
13 automated driving system that is not in use or equipped with an automated
14 driving system that is in use, and that meets both of the following
15 conditions:

16 (a) Is used solely for agricultural purposes, including the
17 preparation or harvesting of cotton, alfalfa, grains, specialty crops and
18 other farm crops. For the purposes of this subdivision, "specialty crops"
19 includes fruits, vegetables, tree nuts, dried fruits and horticulture and
20 nursery crops, including floriculture.

21 (b) Is only incidentally operated or moved on a highway whether as
22 a trailer or an autonomous vehicle or a self-propelled unit. For the
23 purposes of this subdivision, "incidentally operated or moved on a
24 highway" means travel between a farm and another part of the same farm,
25 from one farm to another farm or between a farm and a place of repair,
26 supply or storage.

27 ~~43.~~ 44. "Limousine" means a motor vehicle providing prearranged
28 ground transportation service for an individual passenger, or a group of
29 passengers, that is arranged in advance or is operated on a regular route
30 or between specified points and includes ground transportation under a
31 contract or agreement for services that includes a fixed rate or time and
32 is provided in a motor vehicle with a seating capacity not exceeding
33 fifteen passengers including the driver.

34 ~~44.~~ 45. "Livery vehicle" means a motor vehicle that:

35 (a) Has a seating capacity not exceeding fifteen passengers
36 including the driver.

37 (b) Provides passenger services for a fare determined by a flat
38 rate or flat hourly rate between geographic zones or within a geographic
39 area.

40 (c) Is available for hire on an exclusive or shared ride basis.

41 (d) May do any of the following:

42 (i) Operate on a regular route or between specified places.

43 (ii) Offer prearranged ground transportation service as defined in
44 section 28-141.

45 (iii) Offer on demand ground transportation service pursuant to a
46 contract with a public airport, licensed business entity or organization.

1 ~~45.~~ 46. "Local authority" means any county, municipal or other
2 local board or body exercising jurisdiction over highways under the
3 constitution and laws of this state.

4 ~~46.~~ 47. "Manufacturer" means a person engaged in the business of
5 manufacturing motor vehicles, trailers or semitrailers.

6 ~~47.~~ 48. "Minimal risk condition":

7 (a) Means a condition to which a human driver or an automated
8 driving system may bring a vehicle in order to reduce the risk of a crash
9 when a given trip cannot or should not be completed.

10 (b) Includes bringing the vehicle to a complete stop.

11 ~~48.~~ 49. "Moped" means a bicycle, not including an electric
12 bicycle, an electric miniature scooter or an electric standup scooter,
13 that is equipped with a helper motor if the vehicle has a maximum piston
14 displacement of fifty cubic centimeters or less, a brake horsepower of one
15 and one-half or less and a maximum speed of twenty-five miles per hour or
16 less on a flat surface with less than a one percent grade.

17 ~~49.~~ 50. "Motorcycle" means a motor vehicle that has a seat or
18 saddle for the use of the rider and that is designed to travel on not more
19 than three wheels in contact with the ground but excludes a tractor, an
20 electric bicycle, an electric miniature scooter, an electric standup
21 scooter and a moped.

22 ~~50.~~ 51. "Motor driven cycle" means a motorcycle, including every
23 motor scooter, with a motor that produces not more than five horsepower
24 but does not include an electric bicycle, an electric miniature scooter or
25 an electric standup scooter.

26 ~~51.~~ 52. "Motorized quadricycle" means a self-propelled motor
27 vehicle to which all of the following apply:

28 (a) The vehicle is self-propelled by an emission-free electric
29 motor and may include pedals operated by the passengers.

30 (b) The vehicle has at least four wheels in contact with the
31 ground.

32 (c) The vehicle seats at least eight passengers, including the
33 driver.

34 (d) The vehicle is operable on a flat surface using solely the
35 electric motor without assistance from the pedals or passengers.

36 (e) The vehicle is a commercial motor vehicle as defined in section
37 28-5201.

38 (f) The vehicle is a limousine operating under a vehicle for hire
39 company permit issued pursuant to section 28-9503.

40 (g) The vehicle is manufactured by a motor vehicle manufacturer
41 that is licensed pursuant to chapter 10 of this title.

42 (h) The vehicle complies with the definition and standards for
43 low-speed vehicles set forth in 49 Code of Federal Regulations sections
44 571.3(b) and 571.500, respectively.

45 ~~52.~~ 53. "Motor vehicle":

46 (a) Means either:

47 (i) A self-propelled vehicle.

1 (ii) For the purposes of the laws relating to the imposition of a
2 tax on motor vehicle fuel, a vehicle that is operated on the highways of
3 this state and that is propelled by the use of motor vehicle fuel.

4 (b) Does not include a scrap vehicle, a personal delivery device, a
5 personal mobile cargo carrying device, a motorized wheelchair, an electric
6 personal assistive mobility device, an electric bicycle, an electric
7 miniature scooter, an electric standup scooter or a motorized skateboard.
8 For the purposes of this subdivision:

9 (i) "Motorized skateboard" means a self-propelled device that does
10 not have handlebars and that has a motor, a deck on which a person may
11 ride and at least two tandem wheels in contact with the ground.

12 (ii) "Motorized wheelchair" means a self-propelled wheelchair that
13 is used by a person for mobility.

14 ~~53.~~ 54. "Motor vehicle fuel" includes all products that are
15 commonly or commercially known or sold as gasoline, including casinghead
16 gasoline, natural gasoline and all flammable liquids, and that are
17 composed of a mixture of selected hydrocarbons expressly manufactured and
18 blended for the purpose of effectively and efficiently operating internal
19 combustion engines. Motor vehicle fuel does not include inflammable
20 liquids that are specifically manufactured for racing motor vehicles and
21 that are distributed for and used by racing motor vehicles at a racetrack,
22 use fuel as defined in section 28-5601, aviation fuel, fuel for jet or
23 turbine powered aircraft or the mixture created at the interface of two
24 different substances being transported through a pipeline, commonly known
25 as transmix.

26 ~~54.~~ 55. "Neighborhood electric shuttle":

27 (a) Means a self-propelled electrically powered motor vehicle to
28 which all of the following apply:

29 (i) The vehicle is emission free.

30 (ii) The vehicle has at least four wheels in contact with the
31 ground.

32 (iii) The vehicle is capable of transporting at least eight
33 passengers, including the driver.

34 (iv) The vehicle is a commercial motor vehicle as defined in
35 section 28-5201.

36 (v) The vehicle is a vehicle for hire as defined in section 28-9501
37 and operates under a vehicle for hire company permit issued pursuant to
38 section 28-9503.

39 (vi) The vehicle complies with the definition and standards for
40 low-speed vehicles set forth in 49 Code of Federal Regulations sections
41 571.3(b) and 571.500, respectively.

42 (b) Includes a vehicle that meets the standards prescribed in
43 subdivision (a) of this paragraph and that has been modified after market
44 and not by the manufacturer to transport up to fifteen passengers,
45 including the driver.

46 ~~55.~~ 56. "Neighborhood electric vehicle" means a self-propelled
47 electrically powered motor vehicle to which all of the following apply:

1 (a) The vehicle is emission free.

2 (b) The vehicle has at least four wheels in contact with the
3 ground.

4 (c) The vehicle complies with the definition and standards for
5 low-speed vehicles, unless excepted or exempted under federal law, set
6 forth in 49 Code of Federal Regulations sections 571.3(b) and 571.500,
7 respectively.

8 ~~56.~~ 57. "Neighborhood occupantless electric vehicle" means a
9 neighborhood electric vehicle that is not designed, intended or marketed
10 for human occupancy.

11 ~~57.~~ 58. "Nonresident" means a person who is not a resident of this
12 state as defined in section 28-2001.

13 ~~58.~~ 59. "Off-road recreational motor vehicle" means a motor
14 vehicle that is designed primarily for recreational nonhighway all-terrain
15 travel and that is not operated on a public highway. Off-road
16 recreational motor vehicle does not mean a motor vehicle used for
17 construction, building trade, mining or agricultural purposes.

18 ~~59.~~ 60. "Operational design domain":

19 (a) Means operating conditions under which a given automated
20 driving system is specifically designed to function.

21 (b) Includes roadway types, speed range, environmental conditions,
22 such as weather or time of day, and other domain constraints.

23 ~~60.~~ 61. "Operator" means a person who drives a motor vehicle on a
24 highway, who is in actual physical control of a motor vehicle on a highway
25 or who is exercising control over or steering a vehicle being towed by a
26 motor vehicle.

27 ~~61.~~ 62. "Owner" means:

28 (a) A person who holds the legal title of a vehicle.

29 (b) If a vehicle is the subject of an agreement for the conditional
30 sale or lease with the right of purchase on performance of the conditions
31 stated in the agreement and with an immediate right of possession vested
32 in the conditional vendee or lessee, the conditional vendee or lessee.

33 (c) If a mortgagor of a vehicle is entitled to possession of the
34 vehicle, the mortgagor.

35 ~~62.~~ 63. "Pedestrian" means any person afoot. A person who uses an
36 electric personal assistive mobility device or a manual or motorized
37 wheelchair is considered a pedestrian unless the manual wheelchair
38 qualifies as a bicycle. For the purposes of this paragraph, "motorized
39 wheelchair" means a self-propelled wheelchair that is used by a person for
40 mobility.

41 ~~63.~~ 64. "Personal delivery device":

42 (a) Means a device that is both of the following:

43 (i) Manufactured for transporting cargo and goods in an area
44 described in section 28-1225.

45 (ii) Equipped with automated driving technology, including software
46 and hardware, that enables the operation of the device with the remote
47 support and supervision of a human.

1 (b) Does not include a personal mobile cargo carrying device.
2 ~~64.~~ 65. "Personal mobile cargo carrying device" means an
3 electronically powered device that:
4 (a) Is operated primarily on sidewalks and within crosswalks and
5 that is designed to transport property.
6 (b) Weighs less than eighty pounds, excluding cargo.
7 (c) Operates at a maximum speed of twelve miles per hour.
8 (d) Is equipped with technology to transport personal property with
9 the active monitoring of a property owner and that is primarily designed
10 to remain within twenty-five feet of the property owner.
11 (e) Is equipped with a braking system that when active or engaged
12 enables the personal mobile cargo carrying device to come to a controlled
13 stop.
14 ~~65.~~ 66. "Power sweeper" means an implement, with or without motive
15 power, that is only incidentally operated or moved on a street or highway
16 and that is designed for the removal of debris, dirt, gravel, litter or
17 sand whether by broom, vacuum or regenerative air system from asphaltic
18 concrete or cement concrete surfaces, including parking lots, highways,
19 streets and warehouses, and a vehicle on which the implement is
20 permanently mounted.
21 ~~66.~~ 67. "Public transit" means the transportation of passengers on
22 scheduled routes by means of a conveyance on an individual passenger
23 fare-paying basis excluding transportation by a sightseeing bus, school
24 bus or taxi or a vehicle not operated on a scheduled route basis.
25 ~~67.~~ 68. "Reconstructed vehicle" means a vehicle that has been
26 assembled or constructed largely by means of essential parts, new or used,
27 derived from vehicles or makes of vehicles of various names, models and
28 types or that, if originally otherwise constructed, has been materially
29 altered by the removal of essential parts or by the addition or
30 substitution of essential parts, new or used, derived from other vehicles
31 or makes of vehicles. For the purposes of this paragraph, "essential
32 parts" means integral and body parts, the removal, alteration or
33 substitution of which will tend to conceal the identity or substantially
34 alter the appearance of the vehicle.
35 ~~68.~~ 69. "Residence district" means the territory contiguous to and
36 including a highway not comprising a business district if the property on
37 the highway for a distance of three hundred feet or more is in the main
38 improved with residences or residences and buildings in use for business.
39 ~~69.~~ 70. "Right-of-way" when used within the context of the
40 regulation of the movement of traffic on a highway means the privilege of
41 the immediate use of the highway. Right-of-way when used within the
42 context of the real property on which transportation facilities and
43 appurtenances to the facilities are constructed or maintained means the
44 lands or interest in lands within the right-of-way boundaries.
45 ~~70.~~ 71. "SAE J3016" means surface transportation recommended
46 practice J3016 taxonomy and definitions for terms related to driving

1 automation systems for on-road motor vehicles published by SAE
2 international in June 2018.

3 ~~71.~~ 72. "School bus" means a motor vehicle that is designed for
4 carrying more than ten passengers and that is either:

5 (a) Owned by any public or governmental agency or other institution
6 and operated for the transportation of children to or from home or school
7 on a regularly scheduled basis.

8 (b) Privately owned and operated for compensation for the
9 transportation of children to or from home or school on a regularly
10 scheduled basis.

11 ~~72.~~ 73. "Scrap metal dealer" has the same meaning prescribed in
12 section 44-1641.

13 ~~73.~~ 74. "Scrap vehicle" has the same meaning prescribed in section
14 44-1641.

15 ~~74.~~ 75. "Semitrailer" means a vehicle that is with or without
16 motive power, other than a pole trailer or single-axle tow dolly, that is
17 designed for carrying persons or property and for being drawn by a motor
18 vehicle and that is constructed so that some part of its weight and that
19 of its load rests on or is carried by another vehicle. For the purposes of
20 this paragraph, "pole trailer" has the same meaning prescribed in section
21 28-601.

22 ~~75.~~ 76. "Single-axle tow dolly" means a nonvehicle device that is
23 drawn by a motor vehicle, that is designed and used exclusively to
24 transport another motor vehicle and on which the front or rear wheels of
25 the drawn motor vehicle are mounted on the tow dolly while the other
26 wheels of the drawn motor vehicle remain in contact with the ground.

27 ~~76.~~ 77. "State" means a state of the United States and the
28 District of Columbia.

29 ~~77.~~ 78. "State highway" means a state route or portion of a state
30 route that is accepted and designated by the board as a state highway and
31 that is maintained by the state.

32 ~~78.~~ 79. "State route" means a right-of-way whether actually used
33 as a highway or not that is designated by the board as a location for the
34 construction of a state highway.

35 ~~79.~~ 80. "Street" or "highway" means the entire width between the
36 boundary lines of every way if a part of the way is open to the use of the
37 public for purposes of vehicular travel.

38 ~~80.~~ 81. "Taxi" means a motor vehicle that has a seating capacity
39 not exceeding fifteen passengers, including the driver, that provides
40 passenger services and that:

41 (a) Does not primarily operate on a regular route or between
42 specified places.

43 (b) Offers local transportation for a fare determined on the basis
44 of the distance traveled or prearranged ground transportation service as
45 defined in section 28-141 for a predetermined fare.

1 ~~81.~~ 82. "Title transfer form" means a paper or an electronic form
2 that is prescribed by the department for the purpose of transferring a
3 certificate of title from one owner to another owner.

4 ~~82.~~ 83. "Traffic survival school" means a school that is licensed
5 pursuant to chapter 8, article 7.1 of this title and that offers
6 educational sessions that are designed to improve the safety and habits of
7 drivers and that are approved by the department.

8 ~~83.~~ 84. "Trailer" means a vehicle that is with or without motive
9 power, other than a pole trailer or single-axle tow dolly, that is
10 designed for carrying persons or property and for being drawn by a motor
11 vehicle and that is constructed so that no part of its weight rests on the
12 towing vehicle. A semitrailer equipped with an auxiliary front axle
13 commonly known as a dolly is deemed to be a trailer. For the purposes of
14 this paragraph, "pole trailer" has the same meaning prescribed in section
15 28-601.

16 ~~84.~~ 85. "Transportation network company" has the same meaning
17 prescribed in section 28-9551.

18 ~~85.~~ 86. "Transportation network company vehicle" has the same
19 meaning prescribed in section 28-9551.

20 ~~86.~~ 87. "Transportation network service" has the same meaning
21 prescribed in section 28-9551.

22 ~~87.~~ 88. "Truck" means a motor vehicle designed or used primarily
23 for the carrying of property other than the effects of the driver or
24 passengers and includes a motor vehicle to which has been added a box, a
25 platform or other equipment for such carrying.

26 ~~88.~~ 89. "Truck tractor" means a motor vehicle that is designed and
27 used primarily for drawing other vehicles and that is not constructed to
28 carry a load other than a part of the weight of the vehicle and load
29 drawn.

30 ~~89.~~ 90. "Vehicle":
31 (a) Means a device in, on or by which a person or property is or
32 may be transported or drawn on a public highway.
33 (b) Does not include:
34 (i) Electric bicycles, electric miniature scooters, electric
35 standup scooters and devices moved by human power.
36 (ii) Devices used exclusively on stationary rails or tracks.
37 (iii) Personal delivery devices.
38 (iv) Scrap vehicles.
39 (v) Personal mobile cargo carrying devices.

40 ~~90.~~ 91. "Vehicle transporter" means either:
41 (a) A truck tractor capable of carrying a load and drawing a
42 semitrailer.
43 (b) A truck tractor with a stinger-steered fifth wheel capable of
44 carrying a load and drawing a semitrailer or a truck tractor with a dolly
45 mounted fifth wheel that is securely fastened to the truck tractor at two
46 or more points and that is capable of carrying a load and drawing a
47 semitrailer.

1 Sec. 2. Section 28-337, Arizona Revised Statutes, is amended to
2 read:

3 28-337. High occupancy vehicle lane: lane degradation:
4 priority use

5 A. In accordance with 23 United States Code section 166, the
6 department shall develop procedures to monitor the impact that single
7 occupancy vehicles authorized under sections 28-2416 and 28-2416.01 have
8 on the operation of the high occupancy vehicle lanes.

9 B. If a high occupancy vehicle lane becomes degraded due to the
10 authorization of single occupancy vehicles authorized under sections
11 28-2416 and 28-2416.01, use of the lane is restricted to the following
12 vehicles in the following priority:

13 1. Passenger vehicles with two or more occupants, including the
14 driver.

15 2. Public transit buses.

16 3. Buses with two or more occupants, including the driver.

17 4. Motorcycles.

18 5. Alternative fuel vehicles.

19 6. Low emission and energy efficient vehicles **AS DEFINED IN SECTION**
20 **28-601.**

21 7. **BLOOD TRANSPORT VEHICLES AS DEFINED IN SECTION 28-737.**

22 C. The department shall limit **THE** use **OF THE HIGH OCCUPANCY VEHICLE**
23 **LANES** to vehicles in the priority order prescribed in subsection B of this
24 section and shall maintain those restrictions while the lane or portion of
25 the lane remains degraded.

26 D. For the purposes of this section, a high occupancy vehicle lane
27 is degraded if vehicles operating on the facility, or portions of the
28 facility, are failing to maintain a speed of forty-five miles per hour or
29 greater ninety ~~per cent~~ **PERCENT** of the time over a consecutive one hundred
30 ~~eighty day~~ **EIGHTY-DAY** period during morning and evening weekday peak hour
31 periods.

32 Sec. 3. Section 28-737, Arizona Revised Statutes, is amended to
33 read:

34 28-737. High occupancy vehicle lanes: exceptions: civil
35 penalty; definitions

36 A. Except as provided in sections 28-2416 and 28-2416.01 and
37 subsection B of this section, a person shall not drive a vehicle carrying
38 fewer than two persons, including the driver, in a high occupancy vehicle
39 lane at any time the use of the high occupancy vehicle lane is restricted
40 to vehicles carrying two or more persons, including the driver.

41 B. Subsection A **OF THIS SECTION** does not apply to any of the
42 following:

43 1. During the performance of a tow truck operator's duties, a tow
44 truck operator driving a tow truck.

45 2. A person driving a motorcycle.

46 3. A person driving a public transportation vehicle.

1 4. An authorized emergency vehicle ~~as defined in section 28-101~~
2 that is in use by a first responder in the line of duty.

3 5. A BLOOD TRANSPORT VEHICLE IF THE VEHICLE DISPLAYS ON EACH SIDE
4 AND ON THE REAR OF THE VEHICLE A REMOVABLE DECAL OR SIGN INDICATING THAT
5 THE VEHICLE IS TRANSPORTING HUMAN BLOOD OR BLOOD PRODUCTS.

6 C. A person who violates subsection A of this section is subject to
7 a civil penalty of ~~two hundred dollars~~ \$200.

8 D. Notwithstanding section 28-1554, ~~one hundred dollars~~ \$100 of
9 each civil penalty collected pursuant to subsection C of this section
10 shall be deposited in the state general fund.

11 E. For the purposes of this section: ~~;~~

12 1. "BLOOD TRANSPORT VEHICLE" MEANS A MOTOR VEHICLE THAT IS OWNED OR
13 OPERATED BY A NONPROFIT GENERAL BLOOD BANKING OPERATION, A NONPROFIT BLOOD
14 BANK OR A NONPROFIT BLOOD BANK'S AGENT AND THAT IS TRANSPORTING BLOOD OR
15 BLOOD PRODUCTS BETWEEN COLLECTION POINTS, HOSPITALS OR BLOOD STORAGE
16 CENTERS.

17 2. "Public transportation vehicle" means any vehicle that provides
18 a public entity's public transportation service and either:

19 ~~1.~~ (a) Is owned or operated by the public entity.

20 ~~2.~~ (b) Is operated under a contract with the public entity.

21 <<Sec. 4. Title 28, chapter 3, article 15, Arizona Revised
22 Statutes, is amended by adding section 28-915, to read:

23 28-915. Camera systems; data ownership

24 [A. ANY DATA COLLECTED THROUGH CAMERA SYSTEM'S DEPLOYED BY OR
25 DEPLOYED DIRECTLY ON BEHALF OF A LAW ENFORCEMENT ENTITY IN THIS STATE IS
26 THE SOLE PROPERTY OF THE DEPLOYING LAW ENFORCEMENT ENTITY. THE VENDOR OR
27 TECHNOLOGY PROVIDER SHALL HAVE NO PROPRIETARY INTEREST IN ANY DATA
28 COLLECTED THROUGH THE CAMERA SYSTEMS AND ANY DATA COLLECTED THROUGH THE
29 CAMERA SYSTEMS IS NOT A BUSINESS RECORD OF THE VENDOR OR TECHNOLOGY
30 PROVIDER.

31 B. A CAMERA SYSTEM VENDOR SHALL ACCESS COLLECTED CAMERA DATA ONLY
32 FOR OPERATIONAL PURPOSES, INCLUDING FOR SYSTEM MAINTENANCE,
33 TROUBLESHOOTING, DIAGNOSTIC FUNCTIONS OR AS NECESSARY TO ENFORCE THE TERMS
34 OF THE GOVERNING SERVICE AGREEMENT. A VENDOR MAY NOT INDEPENDENTLY
35 ANALYZE, TRANSFER OR REPURPOSE COLLECTED CAMERA DATA WITHOUT THE EXPRESS
36 WRITTEN AUTHORIZATION OF THE DEPLOYING LAW ENFORCEMENT ENTITY. THE
37 DEPLOYING LAW ENFORCEMENT ENTITY SHALL CONTROL ALL DECISIONS REGARDING
38 DATA SHARING, RETENTION PERIODS AND THIRD-PARTY ACCESS, SUBJECT TO
39 APPLICABLE LAW.

40 C. THIS SECTION DOES NOT PROHIBIT A DEPLOYING LAW ENFORCEMENT
41 ENTITY FROM ALLOWING A CAMERA SYSTEM VENDOR TO PROCESS DE-IDENTIFIED OR
42 REDACTED DERIVATIVES OF DATA OR IMAGES COLLECTED BY A CAMERA PURSUANT TO A
43 WRITTEN AGREEMENT AND ONLY IF THE VENDOR USES THE DATA OR IMAGES TO
44 OPERATE, SECURE, TEST OR IMPROVE THE VENDOR'S SERVICES.

45 D. CAMERA SYSTEM DATA THAT IS SHARED WITH A LAW ENFORCEMENT ENTITY
46 BY A NON-LAW ENFORCEMENT ENTITY, INCLUDING BY A PRIVATE BUSINESS OR AN
47 INDIVIDUAL COMMUNITY MEMBER, OR BY ANOTHER LAW ENFORCEMENT ENTITY IS

1 SUBJECT TO THE SAME USE, ACCESS, RETENTION AND DISCLOSURE LIMITATIONS
2 APPLICABLE TO CAMERA DATA COLLECTED BY THE RECEIVING LAW ENFORCEMENT
3 ENTITY.]>>

4 Sec. 5. Repeal

5 Section 28-2410, Arizona Revised Statutes, is repealed.

6 Sec. 6. Section 28-3158, Arizona Revised Statutes, is amended to
7 read:

8 28-3158. Driver license or instruction permit application

9 A. A person who applies for an instruction permit or for a driver
10 license shall use a form furnished by the department.

11 B. An applicant shall pay the fee prescribed by section 28-3002 for
12 a driver license or for an instruction permit issued under section
13 28-3154, 28-3155, 28-3156 or 28-3225. The department shall refund an
14 application fee pursuant to section 28-373.

15 C. An applicant for an instruction permit or a driver license shall
16 give the department satisfactory proof of the applicant's full legal name,
17 date of birth, sex and domicile residence address in this state, if the
18 applicant has a residence address, and that the applicant's presence in
19 the United States is authorized under federal law.

20 D. The application for an instruction permit or a driver license
21 ~~shall state~~ MAY INCLUDE the following:

22 1. A brief description of the applicant and any other identifying
23 information required by the department.

24 2. Whether the applicant has been licensed, and if so, the type of
25 license issued, when the license was issued and what state or country
26 issued the license.

27 3. If the applicant was never licensed, the applicant's last
28 previous state or country of residence.

29 4. The social security number of the applicant.

30 5. OTHER INFORMATION REQUIRED BY THE DEPARTMENT.

31 E. The department shall:

32 1. Verify that a social security number provided by an applicant is
33 a valid number assigned to that applicant.

34 2. Retain the social security number in its records.

35 F. The social security number provided to the department pursuant
36 to subsection D of this section for an applicant's driver license or
37 instruction permit shall not appear on an applicant's driver license or
38 instruction permit unless the applicant requests that the social security
39 number appear on the applicant's driver license or instruction permit as
40 the driver license or instruction permit number. Except as provided in
41 sections 28-455 and 41-1954, the department shall not release the social
42 security number to any person unless the applicant requests that the
43 social security number appear on the applicant's driver license or
44 instruction permit as the driver license or instruction permit number.
45 The provisions of this subsection shall be included in each application.

46 G. The department may adopt and implement procedures to deny a
47 driver license or instruction permit to a person who has been deported.

1 The department may adopt and implement procedures to reinstate a person's
2 privilege to apply for a driver license or permit if the person's legal
3 presence status is restored.

4 H. On request of an applicant, the department shall allow the
5 applicant to provide on the license or permit a post office box address
6 that is regularly used by the applicant.

7 I. The department may request an applicant who appears in person
8 for a license, a duplicate license or reinstatement of a driving privilege
9 to complete satisfactorily the vision screening prescribed by the
10 department.

11 J. If a driver license applicant submits satisfactory proof to the
12 department that the applicant is a veteran, on request of the applicant,
13 the department shall allow a distinguishing mark to appear on the license
14 that identifies the person as a veteran.

15 Sec. 7. Section 28-3165, Arizona Revised Statutes, is amended to
16 read:

17 28-3165. Nonoperating identification license; immunity;
18 rules; emancipated minors; definition

19 A. On receipt of an application from a person who does not have a
20 valid driver license issued by this state or whose driving privilege is
21 suspended, the department shall issue a nonoperating identification
22 license that contains a distinguishing number assigned to the licensee,
23 the full legal name, the date of birth, the residence address and a brief
24 description of the licensee and either a facsimile of the signature of the
25 licensee or a space on which the licensee is required to write the
26 licensee's usual signature with pen and ink. A nonoperating
27 identification license that is issued to a person whose driving privilege
28 is suspended shall not be valid for more than one hundred eighty days from
29 the date of issuance.

30 B. On request of an applicant:

31 1. The department shall allow the applicant to provide on the
32 nonoperating identification license a post office box address that is
33 regularly used by the applicant.

34 2. If the applicant submits satisfactory proof to the department
35 that the applicant is a veteran, the department shall allow a
36 distinguishing mark to appear on the nonoperating identification license
37 that identifies that person as a veteran.

38 3. If the applicant elects to show and submits satisfactory proof
39 to the department that the applicant is an enrolled member of a federally
40 recognized Indian tribe located in this state, the department shall allow
41 a distinguishing mark to appear on the nonoperating identification license
42 that identifies the applicant as a native American. The distinguishing
43 mark may not identify a specific Indian tribe or other specific personal
44 information that is submitted on the documents that provide satisfactory
45 proof that the person is an enrolled member of a federally recognized
46 Indian tribe located in this state. Documents that provide satisfactory

1 proof that the person is an enrolled member of a federally recognized
2 Indian tribe located in this state include:

- 3 (a) An enhanced tribal card.
- 4 (b) A tribal identification card.
- 5 (c) A tribal certificate of Indian blood.
- 6 (d) A tribal or bureau of Indian affairs affidavit of birth.

7 C. A person who is issued a license pursuant to this section shall
8 use it only for identification purposes of the licensee. The nonoperating
9 identification license does not grant authority to operate a motor vehicle
10 in this state. The department shall clearly label the nonoperating
11 identification license "for identification only, not for operation of a
12 motor vehicle".

13 D. On issuance of a driver license, the holder of a nonoperating
14 identification license shall surrender the nonoperating identification
15 license to the department, and the department shall not refund any fee
16 paid for the issuance of the nonoperating identification license.

17 E. A nonoperating identification license shall contain the
18 photograph of the licensee. When issuing a nonoperating identification
19 license, the department shall use a process that prohibits as nearly as
20 possible the ability to superimpose a photograph on the license without
21 ready detection. The department shall process nonoperating identification
22 licenses and photo attachments in color.

23 F. On application, an applicant shall give the department
24 satisfactory proof of the applicant's full legal name, date of birth, sex
25 and residence address, if the applicant has a residence address, and that
26 the applicant's presence in the United States is authorized under federal
27 law. ~~The application shall briefly describe the applicant, state whether~~
28 ~~the applicant has been licensed, and if so, the type of license issued,~~
29 ~~when and by what state or country and whether any such license is under~~
30 ~~suspension, revocation or cancellation. The application shall contain~~
31 ~~other identifying information required by the department. AS NECESSARY,~~
32 ~~THE DEPARTMENT MAY REQUIRE OTHER IDENTIFYING INFORMATION FROM THE~~
33 ~~APPLICANT.~~

34 G. The department may adopt and implement procedures to deny a
35 nonoperating identification license to a person who has been deported.
36 The department may adopt and implement procedures to reinstate a person's
37 privilege to apply for a nonoperating identification license if the
38 person's legal presence status is restored.

39 H. A nonoperating identification license issued by the department
40 is solely for the use and convenience of the applicant for identification
41 purposes.

42 I. The department shall adopt rules and establish fees for issuance
43 of a nonoperating identification license, except that the department shall
44 not require an examination.

45 J. The fees established pursuant to this section do not apply to
46 any of the following:

- 47 1. A person who is sixty-five years of age or older.

1 2. A person who is a recipient of public monies as an individual
2 with a disability under title XVI of the social security act, as amended.

3 3. A veteran who does not have a residence address.

4 4. A veteran whose residence address is the address of a shelter
5 that provides services to the homeless.

6 5. A child who is in the custody of the department of child safety.

7 K. If a person qualifies for a nonoperating identification license
8 and is under the legal drinking age, the department shall issue a license
9 that is marked by color, code or design to immediately distinguish it from
10 a nonoperating identification license issued to a person of legal drinking
11 age. The department shall indicate on the nonoperating identification
12 license issued pursuant to this subsection the year in which the person
13 will attain the legal drinking age.

14 L. If a minor has been emancipated pursuant to title 12, chapter
15 15, on application and proof of emancipation, the department shall issue a
16 nonoperating identification license that contains the words "emancipated
17 minor".

18 M. Notwithstanding any other law, if an applicant for a
19 nonoperating identification license is at least sixteen years of age and
20 either does not have a residence address or is in the department of child
21 safety's custody, the applicant does not need a signature of the
22 applicant's parent, guardian, foster parent or employer.

23 N. For the purposes of this section, "veteran" has the same meaning
24 prescribed in section 41-601.

25 Sec. 8. Section 28-3173, Arizona Revised Statutes, is amended to
26 read:

27 28-3173. License update

28 A. By written notice the department shall require a licensee to
29 update the licensee's photograph ~~or present or mail to the department in a~~
30 ~~form prescribed by the department a report based on a vision test~~
31 ~~performed by the department or an examination by an optometrist or an~~
32 ~~ophthalmologist or physician licensed to practice medicine;~~ if the license
33 has not been updated in the preceding ~~twelve~~ SIXTEEN years.

34 B. The director may require a licensee to update the licensee's
35 license at any time during the ~~twelve year~~ SIXTEEN-YEAR period from the
36 date of issuance.

37 Sec. 9. Section 28-3319, Arizona Revised Statutes, is amended to
38 read:

39 28-3319. Action after license suspension, revocation or
40 denial for driving under the influence or refusal
41 of test; ignition interlock device requirement;
42 definitions

43 A. If, pursuant to section 28-1321, 28-1381, 28-1382, 28-1383,
44 28-3320 or 28-3322, the license of a driver or the driving privilege of a
45 nonresident is suspended or revoked, the department shall not terminate
46 the suspension or revocation or issue a special ignition interlock
47 restricted driver license, if applicable, pursuant to chapter 4, article

1 3.1 of this title until the person provides proof of financial
2 responsibility pursuant to chapter 9, article 3 of this title.

3 B. If, pursuant to section 28-1321, 28-1381, 28-1382, 28-1383,
4 28-3320 or 28-3322, an unlicensed resident is denied a license or permit
5 to operate a motor vehicle, the department shall not issue a license or
6 permit until the person provides proof of financial responsibility
7 pursuant to chapter 9, article 3 of this title.

8 C. If a person whose license or driving privilege is suspended or
9 revoked pursuant to section 28-1321, 28-1381, 28-1382, 28-1383 or 28-1385
10 is ordered, pursuant to section 28-1381, 28-1382, 28-1383 or 28-1385, to
11 attend alcohol or other drug screening, education, **EVIDENCE-BASED**
12 **PSYCHOTHERAPY** or treatment, the department shall not either:

13 1. Terminate the suspension or issue a special ignition interlock
14 restricted driver license, if applicable, pursuant to chapter 4, article
15 3.1 of this title until the person or licensed treatment facility provides
16 proof that the person has completed or is participating satisfactorily in
17 alcohol or other drug screening, education, **EVIDENCE-BASED PSYCHOTHERAPY**
18 or treatment.

19 2. Issue a new license or a special ignition interlock restricted
20 driver license, if applicable, pursuant to chapter 4, article 3.1 of this
21 title to operate a motor vehicle after the revocation until the person or
22 licensed treatment facility provides proof that the person has completed
23 **OR IS SATISFACTORILY PARTICIPATING IN** the court-ordered program.

24 D. Except as provided in subsection E of this section, on receipt
25 of a report of conviction from a court for a violation that involved
26 intoxicating liquor or that specifically requires the installation of a
27 certified ignition interlock device, the department shall require any
28 motor vehicle the convicted person operates to be equipped with a
29 functioning certified ignition interlock device and the convicted person
30 to meet the requirements prescribed in section 28-1461 as follows:

31 1. For twelve months if:

32 (a) Except as provided in subsection ~~G~~ H of this section, the
33 person is convicted of a violation of section 28-1381, section 28-1382,
34 subsection A, paragraph 1 or section 28-1383, subsection A, paragraph 3,
35 subdivision (a).

36 (b) The department determines that within a period of eighty-four
37 months the person is convicted of a second or subsequent violation of
38 section 28-1381 or section 28-1382, subsection A, paragraph 1 with a prior
39 conviction of a violation of section 28-1381, 28-1382 or 28-1383 or an act
40 in another jurisdiction that if committed in this state would be a
41 violation of section 28-1381, 28-1382 or 28-1383.

42 2. For eighteen months if the person is convicted of a violation of
43 section 28-1382, subsection A, paragraph 2.

44 3. For twenty-four months if:

45 (a) The person is convicted of a violation of section 28-1382,
46 subsection A, paragraph 2 and the department determines that within a
47 period of eighty-four months the person has a prior conviction of a

1 violation of section 28-1381, 28-1382 or 28-1383 or an act in another
2 jurisdiction that if committed in this state would be a violation of
3 section 28-1381, 28-1382 or 28-1383.

4 (b) The person is convicted of a violation of section 28-1383,
5 subsection A, paragraph 1, 2, 4 or 5 or paragraph 3, subdivision (b).

6 E. If a person is required to equip a motor vehicle with a
7 certified ignition interlock device pursuant to subsection D of this
8 section and the person has a medical condition that prevents the person
9 from using the certified ignition interlock device during the entire time
10 period required by subsection D of this section, the department OF
11 TRANSPORTATION shall require monthly alcohol and drug screening instead of
12 the certified ignition interlock device for the time period prescribed by
13 subsection D of this section. The department OF TRANSPORTATION shall
14 require evidence of the medical condition that is satisfactory to the
15 department OF TRANSPORTATION and in a manner prescribed by the department
16 OF TRANSPORTATION from an authorized physician as defined in section
17 28-2409 or an authorized physician assistant as defined in section
18 28-2409. The alcohol or drug screening shall be provided by a facility
19 approved by the department of health services, the United States
20 department of veterans affairs, a substance abuse counselor as defined in
21 section 28-3005 or a probation department.

22 F. The requirement prescribed in subsection D of this section
23 begins on the date the person successfully completes the alcohol or other
24 drug screening, education, EVIDENCE-BASED PSYCHOTHERAPY or treatment
25 program requirements of this title and the person is otherwise eligible to
26 reinstate the person's driver license or driving privilege. If the person
27 is issued a special ignition interlock restricted driver license for the
28 violations giving rise to the requirements prescribed in subsection D of
29 this section or pursuant to section 28-1321, subsection P or section
30 28-1385, subsection J, the person shall be credited for the amount of time
31 that a certified ignition interlock device is installed on the person's
32 motor vehicle after the department authorizes the installation of the
33 certified ignition interlock device on that person's motor vehicle.

34 G. A person who is required to equip a motor vehicle with a
35 certified ignition interlock device pursuant to this section shall comply
36 with chapter 4, article 5 of this title.

37 H. The department shall defer the remainder of the time period
38 prescribed in subsection D, paragraph 1, subdivision (a) of this section
39 commencing with the later of six months from the date the interlock was
40 installed or the completion of the requirements of this subsection if all
41 of the following apply:

42 1. The person is sentenced pursuant to section 28-1381,
43 subsection I.

44 2. The person successfully completes an alcohol education program
45 consisting of at least sixteen hours pursuant to section 28-1381.

1 3. The person has maintained a functioning ignition interlock
2 device on all motor vehicles the person operates and has met the
3 requirements of section 28-1461.

4 4. The person has not attempted to operate a vehicle with an
5 alcohol concentration of 0.08 or more two or more times during the period
6 of license restriction or limitation.

7 5. At the time of the offense, the person was not involved in a
8 motor vehicle accident that resulted in physical injury or property
9 damage.

10 6. All necessary compliance information has been provided to the
11 department by the ignition interlock device provider, the alcohol
12 screening program and the alcohol education program.

13 I. The deferment pursuant to subsection H of this section is
14 permanent, unless the person is arrested for a violation of section
15 28-1381, 28-1382 or 28-1383 that occurs during the period of the
16 deferment. If the person is arrested as described in this subsection, the
17 department shall revoke the deferment and require the person to complete
18 the remainder of the time period prescribed in subsection D, paragraph 1,
19 subdivision (a) of this section.

20 J. Notwithstanding any other law, the department shall reduce the
21 length of time that a person is required to have a functioning certified
22 ignition interlock device installed in a motor vehicle pursuant to
23 subsection D of this section by the length of time that the person is
24 incarcerated in a jail or prison facility for a violation of section
25 28-1381 or 28-1383 that did not involve intoxicating liquor.

26 K. For the purposes of this section: ~~;~~

27 1. "Certified ignition interlock device" has the same meaning
28 prescribed in section 28-1301.

29 2. "EVIDENCE-BASED PSYCHOTHERAPY" HAS THE SAME MEANING PRESCRIBED
30 IN SECTION 28-1381.

31 Sec. 10. Section 28-3321, Arizona Revised Statutes, is amended to
32 read:

33 28-3321. Moving violations by persons under eighteen years of
34 age; traffic survival school; suspension

35 A person who ~~holds a driver permit or license and who~~ is found
36 responsible for a moving civil traffic violation pursuant to this title or
37 who is convicted of a moving criminal traffic offense pursuant to this
38 title, excluding violations of sections 28-693, 28-695, 28-708, 28-1381,
39 28-1382, 28-1383 and 28-3174, and who commits the moving civil traffic
40 violation or moving criminal traffic offense while the person is under
41 eighteen years of age is subject to the following:

42 1. On receipt of the first record of judgment or conviction, the
43 department shall order the person to attend and successfully complete
44 traffic survival school educational sessions.

45 2. On receipt of the second record of judgment or conviction, the
46 department shall suspend the person's driving privilege for three months.

1 3. On receipt of the third record of judgment or conviction, the
2 department shall suspend the person's driving privilege for six months.

3 Sec. 11. Section 28-4882, Arizona Revised Statutes, is amended to
4 read:

5 28-4882. Junk vehicle; disposition

6 A. If a vehicle has been reported abandoned under section 28-4838,
7 the person making the report may request that the vehicle be processed as
8 a junk vehicle. An agent of the department shall inspect the vehicle to
9 determine if the vehicle is a junk vehicle.

10 B. On making a determination that the vehicle is a junk vehicle,
11 the director shall cause a search of department records to be made, or if
12 a junk vehicle is registered in another state, make inquiry of the vehicle
13 registration agency in that state, to ascertain the name and address of
14 the owner and lienholder, if any, or any other person identified on the
15 department's record.

16 C. On receipt of information disclosing the name and address of the
17 owner and lienholder, if any, or any other person identified on the
18 department's record who may have an interest in the vehicle, the director
19 shall give notice to all interested persons of the director's intention to
20 allow the disposition of the junk vehicle as prescribed by this section.
21 The director shall give the notice by mail within five days for a vehicle
22 with a record in this state or within thirty days for all other vehicles.

23 D. If the records of the department or out of state jurisdiction do
24 not disclose the name and address of the owner and lienholder, if any, or
25 any other person who is identified on the department's record and who may
26 have an interest in the vehicle, or if the notice is returned marked
27 unclaimed or addressee unknown, the department shall publish the notice of
28 the intention of the director to allow the disposition of the junk vehicle
29 as prescribed by this article ~~once in a newspaper of general circulation~~
30 ~~in the county in which the junk vehicle was found~~ ON THE DEPARTMENT'S
31 WEBSITE FOR AT LEAST THIRTY DAYS. The published notice shall include a
32 statement that the department will make available to the public a complete
33 vehicle description of junk vehicles.

34 E. If the vehicle is unclaimed at the expiration of thirty days
35 after the date placed on the notification mailed by the department or
36 within ten days of the publication as provided in subsections C and D of
37 this section, the director shall determine if the vehicle is a stolen
38 vehicle. On receiving notification that the vehicle has not been reported
39 stolen, the director shall issue written authorization to the owner of the
40 property authorizing the owner of the property or a licensed automotive
41 recycler to dispose of the junk vehicle pursuant to section 28-4883.

1 Sec. 12. Section 28-5606, Arizona Revised Statutes, is amended to
2 read:

3 28-5606. Imposition of motor fuel taxes

4 A. In addition to all other taxes provided by law, a tax of
5 ~~eighteen cents~~ \$.18 per gallon is imposed on motor vehicle fuel possessed,
6 used or consumed in this state.

7 B. To partially compensate this state for the use of its highways:

8 1. A use fuel tax is imposed on use fuel used in the propulsion of
9 a light class motor vehicle on a highway in this state at the same rate
10 per gallon as the motor vehicle fuel tax prescribed in subsection A of
11 this section, except that there is no use fuel tax on alternative fuels.

12 2. A use fuel tax is imposed on use fuel used in the propulsion of
13 a use class motor vehicle on a highway in this state at the rate of
14 ~~twenty-six cents~~ \$.26 for each gallon, except that there is no use fuel
15 tax on alternative fuels and use class vehicles that are exempt pursuant
16 to section 28-5432 from the weight fee prescribed in section 28-5433 are
17 subject to the use fuel tax imposed by paragraph 1 of this subsection.

18 ~~3. Through December 31, 2024, a use fuel tax is imposed on use fuel~~
19 ~~used in the propulsion of a motor vehicle transporting forest products in~~
20 ~~compliance with the requirements of section 41-1516 on a highway in this~~
21 ~~state at the rate of nine cents for each gallon, except that there is no~~
22 ~~use fuel tax on alternative fuels.~~

23 C. The motor vehicle fuel and use fuel taxes imposed pursuant to
24 this section and the aviation fuel taxes imposed pursuant to section
25 28-8344 are conclusively presumed to be direct taxes on the consumer or
26 user but shall be collected and remitted to the department by suppliers
27 for the purpose of convenience and facility only. Motor vehicle fuel, use
28 fuel and aviation fuel taxes that are collected and paid to the department
29 by a supplier are considered to be advance payments, shall be added to the
30 price of motor vehicle fuel, use fuel or aviation fuel and shall be
31 recovered from the consumer or user.

32 D. Motor vehicle fuel and use fuel taxes imposed pursuant to this
33 section on the use of motor vehicle fuel and use fuel and the aviation
34 fuel taxes imposed pursuant to section 28-8344 on the use of aviation
35 fuel, other than by bulk transfer, arise at the time the motor vehicle,
36 use or aviation fuel either:

37 1. Is imported into this state and is measured by invoiced gallons
38 received outside this state at a refinery, terminal or bulk plant for
39 delivery to a destination in this state.

40 2. Is removed, as measured by invoiced gallons, from the bulk
41 transfer terminal system or from a qualified terminal in this state.

42 3. Is removed, as measured by invoiced gallons, from the bulk
43 transfer terminal system or from a qualified terminal or refinery outside
44 this state for delivery to a destination in this state as represented on
45 the shipping papers if a supplier imports the motor vehicle, use or
46 aviation fuel for the account of the supplier or the supplier has made a
47 tax precollection election pursuant to section 28-5636.

1 E. If motor fuel is removed from the bulk transfer terminal system
2 or from a qualified terminal or is imported into this state, the original
3 removal, transfer or importation of the motor fuel is subject to the
4 collection of the tax. If this motor fuel is transported to another
5 qualified terminal or reenters the bulk transfer terminal system, the
6 subsequent sale of the motor fuel on which tax has been collected is not
7 subject to collection of an additional tax if proper documentation is
8 retained to support the transaction.

9 Sec. 13. Section 28-5614, Arizona Revised Statutes, is amended to
10 read:

11 28-5614. Refunds; use fuel

12 A. If a vendor pays the use fuel tax rate for use class motor
13 vehicles on use fuel that is actually used in the propulsion of a light
14 class motor vehicle on a highway in this state or that is actually used in
15 the propulsion of a use class motor vehicle that is exempt pursuant to
16 section 28-5432 from the weight fee prescribed in section 28-5433 on a
17 highway in this state and for the purpose of convenience and facility
18 only, the vendor may apply to the department for a refund of the
19 difference between the amount of the use class motor vehicle use fuel tax
20 paid and the amount of the light class motor vehicle use fuel tax on the
21 same number of gallons purchased.

22 ~~B. If a person who transports forest products on a highway in this~~
23 ~~state in compliance with the requirements of section 41-1516 pays the use~~
24 ~~fuel tax rate prescribed in section 28-5606, subsection B, paragraph 2 for~~
25 ~~a use class motor vehicle that is eligible for the use fuel tax rate~~
26 ~~prescribed in section 28-5606, subsection B, paragraph 3, the person may~~
27 ~~apply to the department for a refund of the difference between the amount~~
28 ~~of the use fuel tax paid and the use fuel tax rate prescribed for a motor~~
29 ~~vehicle transporting forest products.~~

30 ~~C.~~ B. The director may prescribe any forms the director deems
31 necessary to implement this section.

32 ~~D.~~ C. A vendor may file an application for a refund pursuant to
33 this section on a monthly basis subject to the limitations prescribed in
34 section 28-5612.

35 ~~E.~~ D. The director shall:

36 1. Pay the refund from current use fuel tax receipts.

37 2. Deduct the refund from the monthly use fuel tax receipts before
38 the deposit pursuant to section 28-5730 is made.

39 Sec. 14. Section 28-5805, Arizona Revised Statutes, is amended to
40 read:

41 28-5805. Motor vehicle powered by alternative fuel;
42 classification; vehicle license tax; definitions

43 A. A separate classification of motor vehicles is established for
44 purposes of taxation pursuant to article IX, section 11, Constitution of
45 Arizona, that consists of motor vehicles that are powered by alternative
46 fuel ~~and for which the department issues an alternative fuel vehicle~~
47 ~~special plate or sticker pursuant to section 28-2416.~~

1 B. Notwithstanding section 28-5801, the registering officer shall
2 collect at the time of application for and before registration of the
3 motor vehicle that is classified under this section an annual license tax
4 of \$4 for each \$100 in value. The motor vehicle value is determined as
5 follows:

6 1. For a motor vehicle that is registered in this state before
7 January 1, 2022, the value of the motor vehicle is one percent of the
8 manufacturer's base retail price of the motor vehicle. After the first
9 twelve months of the life of the motor vehicle as determined by its
10 initial registration, the value of the motor vehicle is fifteen percent
11 less for each twelve-month period than the value for the preceding
12 twelve-month period.

13 2. For a motor vehicle that is initially registered in this state
14 during a period beginning January 1, 2022 and ending December 31, 2022,
15 during the first twelve months of the life of the motor vehicle as
16 determined by its initial registration, the value of the motor vehicle is
17 twenty percent of the manufacturer's base retail price of the motor
18 vehicle. During each succeeding twelve-month period, the value of the
19 motor vehicle is fifteen percent less than the value for the preceding
20 twelve-month period.

21 C. The registering officer shall collect the vehicle license tax on
22 a motor vehicle that is powered by alternative fuel and that is initially
23 registered from and after December 31, 2022 in accordance with section
24 28-5801. The minimum amount of the vehicle license tax collected pursuant
25 to this subsection must be in accordance with section 28-5801 and shall be
26 distributed pursuant to section 28-5808, subsection B.

27 D. Except as provided in subsection C of this section, the minimum
28 amount of the license tax computed under this section is \$5 per year for
29 each motor vehicle subject to the tax.

30 E. Except as specifically provided in this section, the vehicle
31 license tax on a motor vehicle classified under this section is governed
32 by this article.

33 F. For the purposes of this section:

34 1. "Alternative fuel" has the same meaning prescribed in section
35 1-215.

36 2. "Motor vehicle" means a vehicle that meets the safety standards
37 of the national highway traffic safety administration and includes:

38 (a) Neighborhood electric vehicles that meet the standards
39 prescribed in 49 Code of Federal Regulations section 571.500, except that,
40 if a vehicle is designed to be operated at speeds of twenty miles per hour
41 or less, the vehicle is not required to have a seventeen digit vehicle
42 identification number.

43 (b) Neighborhood electric shuttles.

1 Sec. 15. Section 28-7041, Arizona Revised Statutes, is amended to
2 read:

3 28-7041. State highways and routes defined: primitive road
4 designation

5 A. The state highways, to be known as state routes, consist of the
6 highways declared before August 12, 1927 to be state highways, under
7 authority of law, that the board, after receipt of a recommendation from
8 the director, may add to, abandon or change. If the board proceeds
9 contrary to the recommendations of the director, ~~it~~ THE BOARD shall file a
10 written report with the governor stating the reasons for the action.

11 B. The state highways consist of the parts of the state routes
12 designated and accepted as state highways by the board. A highway that
13 has not been designated as a state route shall not become a state highway
14 and any portion of a state route shall not become a state highway until it
15 has been specifically designated and accepted by the board as a state
16 highway and ordered to be constructed and improved.

17 C. THE DIRECTOR OR THE DIRECTOR'S DESIGNEE MAY DESIGNATE A STATE
18 HIGHWAY OR ROUTE AS A PRIMITIVE ROAD.

19 D. NEITHER THIS STATE OR ITS EMPLOYEES ARE LIABLE FOR DAMAGES OR
20 INJURIES RESULTING FROM THE USE OF A PRIMITIVE ROAD DESIGNATED PURSUANT TO
21 SUBSECTION C OF THIS SECTION EXCEPT FOR INTENTIONAL INJURIES OR GROSS
22 NEGLIGENCE CAUSED BY AN EMPLOYEE ACTING WITHIN THE SCOPE OF THE EMPLOYEE'S
23 EMPLOYMENT.

24 E. THE DEPARTMENT SHALL PLACE SIGNS ON EACH ROAD DESIGNATED AS A
25 PRIMITIVE ROAD IN LOCATIONS ADEQUATE TO WARN THE PUBLIC. THESE SIGNS
26 SHALL STATE "PRIMITIVE ROAD, CAUTION, USE AT YOUR OWN RISK. THIS SURFACE
27 IS NOT REGULARLY MAINTAINED".

28 ~~C.~~ F. All highways, roads or streets that have been constructed,
29 laid out, opened, established or maintained for ten years or more by the
30 state or an agency or political subdivision of the state before January 1,
31 1960 and that have been used continuously by the public as thoroughfares
32 for free travel and passage for ten years or more are declared public
33 highways, regardless of an error, defect or omission in the proceeding or
34 failure to act to establish those highways, roads or streets or in
35 recording the proceedings.

36 Sec. 16. Section 28-8328, Arizona Revised Statutes, is amended to
37 read:

38 28-8328. Failure to register: assessment procedure

39 If an aircraft is not registered within the time periods prescribed
40 in this article, the director shall assess registration fees, license
41 taxes and penalties due as follows:

42 1. The director shall give ~~written~~ notice of the assessment to the
43 owner of the aircraft ~~by either mailing the notice in a postage prepaid~~
44 ~~sealed envelope addressed to the owner of the aircraft at the owner's~~
45 ~~address as it appears in the records of the department or by delivery in~~
46 ~~person~~. Notice is deemed to be complete at the time of mailing or at the
47 time of ~~personal delivery~~ ELECTRONIC TRANSMISSION.

1 2. The assessment is final thirty days after notice is deemed to be
2 complete, unless, before that time, the department receives a written
3 objection to the assessment and a request for a hearing from the
4 owner. If the department receives a request for a hearing, the hearing
5 shall be conducted as provided in section 28-8244.

6 Sec. 17. Implementation

7 The department of transportation shall recall the honorary consular
8 official special plates issued pursuant to section 28-2410, Arizona
9 Revised Statutes, as repealed by this act, and shall issue each person a
10 standard license plate in lieu of the honorary consular official special
11 plate.

12 Enroll and engross to conform

13 Amend title to conform

And, as so amended, it do pass

LEO BIASIUCCI
CHAIRMAN

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